SMALL BUSINESS SUBCONTRACTING PLAN

In accordance with Federal Acquisition Regulations (FAR) 52.219-9 Small Business Subcontracting Plan, the Prime Contractor shall submit and negotiate a subcontracting plan upon request by the Contracting Officer (CO). The subcontracting plan shall be negotiated within the time specified by the CO.

This plan follows the format for addressing the fifteen elements required by FAR 19.704(a). Please be sure to address all fifteen elements.

Date of Submission: enter date	
Prime Contractor Name: ABC Construction	
Address: xxxxxx	
State / Zip Code: xxxxxx	
Contractors SAM Unique Entity Identifier (UEI) No.	xxxxxxx
Contract or Solicitation No. 140P202xxxxxxxx	
Contract Scope of Work: xxxxxxx	
Contract Period of Performance: xxxx-days	Total Proposed Price: $x,xxx,xxx.xx

1. Type of Plan

This individual plan:

a. Covers the entire contract period of performance (including option periods)

b. Applies to the specific contract noted above; and

c. Includes subcontracting goals in support of the contract action referenced above; except that indirect costs incurred for common or joint purposes may be allocated on a prorated basis to the contract.

2. Goals

Following are the dollar and percentage goals for SB, SDB, HUBZone, ISBEE, SDVOSB, WOSB, and Businesses including Alaska Native Corporations and Indian Tribes, concerns as Subcontractors.

a. Total estimated dollar value of **ALL** planned subcontracting, with ALL types of concerns (large & small), under this contract:

Dollar Value: $x,xxx,xxx.xx

b. Total estimated dollar value and percent of planned subcontracting of section *"2.a. Goals"* above:

CLASSIFICATION	DOLLAR VALUE	PERCENTAGE
SMALL BUSINESS (SB)	$x,xxx,xxx.xx	x.xx%
SMALL DISADVANTAGE BUSINESS (SDB)	$x,xxx,xxx.xx	x.xx%
HUBZone SMALL BUSINESS (HUBZone)	$x,xxx,xxx.xx	x.xx%
INDIAN SMALL BUSINESS ECONOMIC ENTERPRISE (ISBEE)	$x,xxx,xxx.xx	x.xx%
SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)	$x,xxx,xxx.xx	x.xx%
WOMEN-OWNED SMALL BUSINESS (WOSB)	$x,xxx,xxx.xx	x.xx%
OTHER THAN SMALL BUSINESS*	$x,xxx,xxx.xx**	x.xx%

3. Subcontracted Products / Services and Subcontractors

The following is a listing of 1) products and/or services to be subcontracted, 2) Subcontractors that we used in preparing our proposal and 3) the business size and socio-economic status of each listed Subcontractor. Refer to sections 12 and 13 for related information.

Subcontracted Products & Services (List even if Subcontractors are not yet known)	**Subcontractors** (Listed below are Subcontractors that were used in preparing our proposal. Additional firms may be added during contract performance)		**Business Size & Socio-Economic Status** (SB, SDB, HUBZone, ISBEE, SDVOSB, WOSB, or Other)*
	UEI No.	Company Name	

4. Method for Determining Goals

Following is a description of the method used to develop the subcontracting goals for SB, SDB, HUBZone, ISBEE, SDVOSB, WOSB, or Other concerns.

xxxxx

5. Method for Identifying Potential Subcontractors

The following sources were used to identify potential Subcontractors for solicitation purposes:

Check each box below as applicable.

☐ Existing Company Source Lists

☐ National Minority Purchasing Council Vendor Information Service

☐ Small Business Administration's (SBA) Dynamic Small Business Search web page

☐ Small Business Trade Associations

☐ System for Award Management (SAM)

☐ U.S. Department of Commerce Minority Business Development Agency's Research and Information Division

☐ Veterans Service Organizations

☐ Other Sources: xxxxx

The following narrative explains how the areas to be subcontracted to SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concerns were determined, how the capabilities of those concerns were considered contract opportunities and how such data relates to the proposal.

xxxxx

6. Indirect Costs

Indirect costs have or have not been included in the dollar and percentage subcontracting goals above.

The following is the method used to determine the proportionate share of such costs to be allocated as subcontracts to SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concern:

xxxxx

7. Subcontracting Program Administrator (SPA):

The following named individual has general overall responsibility for the company's subcontracting program, i.e., developing, preparing, and executing subcontracting plans and monitoring performance relative to the requirements of this subcontracting plan.

Name: xxxx

Title: xxxx

Address: xxxx

Phone No.: xxxx

Email: xxxx

SPA Authorities and Responsibilities:

a. Develops and promotes company-wide policy initiatives that demonstrate the company's support for awarding contracts and subcontracts to SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concerns; and for assuring that these concerns are included on the source lists for solicitations for products and services they are capable of providing;

b. Develops and maintains bidder source lists of SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concerns from all possible sources;

c. Ensures periodic rotation of potential Subcontractors on bidder's lists;

d. Assures that SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB businesses are included on the bidders' list for every subcontract solicitation for products and services that they are capable of providing;

e. Ensures that Requests for Proposals (RFPs) are designed to permit the maximum practicable participation of SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concerns;

f. Reviews subcontract solicitations to remove statements, FAR clauses, etc., which might tend to restrict or prohibit SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB participation;

g. Accesses various sources for the identification of SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concerns, including 1) SBA's Dynamic Small Business Search web page (http://dsbs.sba.gov/dsbs/search/dsp_dsbs.cfm), 2) The System for Awards Management (www.sam.gov), 3) Local Small Business and Minority Associations, 4) Local Chambers of Commerce, and 5) Federal Agencies' Small Business Offices;

h. Establishes and maintains contract and subcontract award records;

i. Participates in Business Opportunity Workshops, Minority Business Enterprise Seminars, Trade Fairs, Procurement Conferences, etc.;

j. Ensures that SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concerns are made aware of subcontracting opportunities and assists concerns in preparing responsive bids to the company;

k. Monitors the company's subcontracting program performance and makes any adjustments necessary to achieve the subcontract plan goals;

l. Prepares and submits timely, required subcontract reports;

m. Conducts or arranges training for purchasing personnel regarding the intent and impact of 8(d) of the Small Business Act on purchasing procedures;

n. Coordinates the company's activities during the conduct of compliance reviews by Federal agencies; and

o. Other duties: xxxx.

8. Equitable Opportunity

The following efforts will be undertaken to ensure that SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concerns will have an equitable opportunity to compete for subcontracts.

a. Outreach efforts to obtain sources:

   I. Attend SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB Procurement Conferences and Trade Fairs;

   II. Contact Business Development Organizations and Local Chambers of Commerce;

   III. Contact Minority and Small Business Trade Associations;

   IV. Review sources from Dynamic Small Business Search (http://dsbs.sba.gov/dsbs/search/dsp_dsbs.cfm);

V. Review sources from System for Award Management web page (www.sam.gov).

xxxx

b. Internal efforts to guide and encourage purchasing personnel:

I. Conduct workshops, seminars and training programs;

II. Establish, maintain, and utilize SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB source lists, guides, and other data for soliciting Subcontractors; and

III. Monitor activities to evaluate compliance with the subcontracting plan.

xxxx

9. Inclusion of FAR clause 52.219-8, "Utilization of Small Business Concerns"

This FAR clause shall be included in all subcontracts that offer further subcontracting opportunities. All Subcontractors (except small business concerns) that receive subcontracts in excess of $750,000 ($1,500,000 for construction) and possess further subcontracting opportunities will be required to adopt and comply with a subcontracting plan that complies with contract FAR clause 52.219-9, "Small Business Subcontracting Plan."

10. Reporting and Cooperation

As the Prime Contractor we will:

a. Cooperate in any studies or surveys that may be required;

b. Submit periodic reports which illustrate compliance with the subcontracting plan;

c. Submit Individual Subcontracting Report (ISR) and Summary Subcontract Report (SSR); via the Electronic Subcontracting Reporting System (eSRS) website (www.esrs.gov)

Reports will be submitted, per the schedule below, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period.

Reporting Period	Report Due	Due Date
Oct 1 - Mar 31	ISR	4/30
Apr 1 - Sept 30	ISR	10/30
Oct 1 - Sept 30	SSR	10/30
Oct 1 – Sep 30	Year End SDB Report	90-days after SSR submission
Contract Completion	Final ISR	30-days after completion

d. Ensure that Subcontractors with subcontracting plans agree to submit an ISR and/or a SSR using eSRS;

e. Provide our Prime Contract number, our UEI number, and the Email address of our official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier Subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs; and

f. Require that each Subcontractor with a subcontracting plan provide the Prime Contract number, its own UEI number, and the Email address of the Subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its Subcontractors with subcontracting plans.

11. Recordkeeping

The following is a description of the types of records that will be maintained concerning procedures that have been adopted to comply with the requirements and goals in this subcontracting plan, including establishing source lists; and a description of our efforts to locate SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concerns and award subcontracts to them.

xxxxx

12. Acquiring Supplies and Services

As the Prime Contractor, we will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that we used in preparing our proposal, in the same or greater scope, amount, and quality used in preparing and submitting our proposal.

13. Contracting Officer (CO) Notice Regarding the Acquisition of Supplies and Services

As the Prime Contractor, we will provide the CO with a written explanation if we fail to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in section 12 above. This written explanation will be submitted to the CO within 30 days of contract completion.

14. Prohibition of Subcontractor Discussions

As the Prime Contractor, we will not prohibit a Subcontractor from discussing with the CO any material matter pertaining to payment to or utilization of a Subcontractor.

15. Subcontractor Payments

As the Prime Contractor, we will 1) pay our small business subcontractors on time and in accordance with the terms and conditions of the underlying subcontract, 2) notify the CO when we make either a reduced or an untimely payment to a small business subcontractor, 3) accelerate payment to our Subcontractors in accordance with contract FAR clause 52.232-40.

16. Description of Good Faith Effort

Maximum practicable utilization of SB, SDB, HUBZone, ISBEE, SDVOSB, and WOSB concerns as Subcontractors in Government contracts is a matter of national interest with both social and economic benefits. When a contractor fails to make a good faith effort to comply with a subcontracting plan, these objectives are not achieved and 15 U.S.C. 637(d) (4) (F) directs that liquidated damages shall be paid by the contractor.

Following is a description of our firm's commitment to making a good faith effort towards the subcontracting goals noted above.

xxxxx

Required Signatures

Prime Contractor Company Name: xxxx

This Subcontracting Plan is submitted by:

Signature: _____ **Date Prepared:** _____

Print Name: _____ **Phone Number:** _____

Title: _____

Contracting Officer, NPS – Denver Service Center (DSC)

As the Contracting Officer, I:

- Have confirmed all Subcontractors evaluated are included in this Subcontracting Plan, (Because a prime contract has not yet been awarded not all Subcontractors have been determined and evaluated);
- Have confirmed certification for all submitted HUBZone firms are current, (We will also confirm current certification of any HUBZone firms added during contract performance);
- Have confirmed certification for all submitted SDVOSB firms are current, (We will also confirm current certification of any SDVOSB firms added during contract performance);
- Will monitor the Prime Contractor to ensure Subcontractors evaluated are used in performance of the work;
- Am registered in eSRS and will monitor the Prime Contractor's eSRS reports to verify good faith efforts are made to meet the goals of this plan;
- Will insure a copy of the final award document is submitted to the SBA Area Director, Office of Government Contracting, where the contract will be performed,
- Will submit a copy of the final subcontracting plan to the SBA's Commercial Market Representative (CMR); and
- Am committed to assuring compliance with applicable contract requirements.

In accordance with FAR clause 19.705-4 and based upon the information noted above, I have determined the Prime Contractor's proposed Subcontracting Plan is acceptable.

Additional Comments:

xxxxx

Signature: _____ **Date:** _____

NPS DSC Contracting Officer

Small Business Specialist, NPS - DSC

The Subcontracting Plan has been reviewed and determined:

☐ Acceptable.

☐ Acceptable contingent upon the comments noted below.

☐ Rejected. Revise per the comments noted below and resubmit.

Comments:

xxxxx

Signature: _____ **Date:** _____

NPS DSC Small Business Specialist

Small Business Specialist, NPS – Headquarters (HQ) (Washington Support Office)

The Subcontracting Plan has been reviewed and determined:

☐ Acceptable.

☐ Acceptable contingent upon the comments noted below.

☐ Rejected. Revise per the comments noted below and resubmit.

Comments:

xxxxx

Signature: _____ **Date:** _____

NPS HQ Small Business Specialist

Small Business Administration (SBA) Procurement Center Representative

The Subcontracting Plan has been reviewed and determined:

☐ Acceptable. (Please retain a copy of this final negotiated subcontracting plan for SBA records to meet the requirement of FAR 19.705-6(c)(2)) and DOI-AAAP 0076).

☐ Acceptable contingent upon the comments noted below.

☐ Rejected. Revise per the comments noted below and resubmit.

(Please retain a copy of this final negotiated subcontracting plan for SBA records to meet the requirement of FAR 19.705-6(c)(2)) and DOI-AAAP 0076.)

Comments:

xxxxx

Signature: _____ **Date:** _____

SBA Procurement Center Representative